

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601938	HAMILTON vs KUWANO	DEMURRER ON COMPLAINT

Tentative Ruling:

OVERRULE the demurrer. Defendants Shelby Worthington Loomis and Steve Loomis to Answer within 10 days.

Plaintiff has properly pleaded all the elements of a cause of action for breach of guaranty. Whether Loomis' obligations as a guarantor have been extinguished by Civ. Code § 2819, whether the subsequent guaranty is a substituted contract, and/or whether a novation has occurred, are all merits-based arguments that cannot be resolved at the pleadings stage. Whether the cause of action for breach of guaranty against Steven Loomis can be proven against him at trial is not at issue in this pleadings motion.

Overrule.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2602721	COTA vs HORSPOOL	MOTION TO EXPUNGE LIS PENDENS

Tentative Ruling:

DENY

Plaintiff has properly alleged a real property claim for Quiet Title To Prescriptive Easement and Equitable Easement in his First Amended Verified Complaint (FAC), filed on July 10, 2026. Plaintiff has shown the probable validity of these causes of action, hence, the motion to expunge is denied.